

106	Lopez vs. Volkswagen Group of America, Inc., 2026-01556626	DEMURRER TO COMPLAINT – MOOTED BY FILING OF FIRST AMENDED COMPLAINT
107	Luther v. Zahedi	OFF CALENDAR
108	Mom CA Investco, LLC vs. 247 Hotels Beverage, LLC, 2023-01325570	OFF CALENDAR - WITHDRAWN
109	Munguia vs. BMW of North America, LLC, 2025-01453458	MOTION FOR TERMINATING SANCTIONS BMW of North America, LLC (“BMW”), request an order imposing terminating sanctions against Plaintiff Maribel Munguia Plaintiff and her counsel of record, Quill & Arrow LLP, pursuant to CCP§§ 2023.010(d), 2023.030(d), and 2025.450(d) for their willful failure to (1) appear for deposition and (2) make the Subject Vehicle available for inspection, in violation of this Court’s March 3, 2026 Order (ROA 75). In the alternative, BMW requests the Court impose issue sanctions, evidentiary sanctions, and monetary sanctions in the form of attorneys’ fees and costs incurred as a result of Plaintiff and her Counsel’s failure to comply with the Court’s order and their misuse of the discovery process. A court has broad discretion in selecting the appropriate penalty for a party’s refusal to obey a discovery order, and the trial court’s determination must be upheld absent an abuse of discretion. (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604 (“Lopez”).) “Despite this broad discretion, . . . the terminating sanction is a drastic penalty and should be used sparingly. [Citation.]” (Ibid.) “A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party’s fundamental right to a trial, thus implicating due process rights. [Citations.]” (Ibid.) The discovery statutes “evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th

		967, 992.) “Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citations], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective [citations].” (Lopez, supra, 246 Cal.App.4th at pp. 604-605.) Following an IDC, on March 3, 2026 the Court granted BMW’s motions to compel and ordered: (1) Plaintiff’s deposition must proceed no later than March 17, 2026; and (2) the Vehicle Inspection must proceed by April 6, 2026. (Triplett Decl. ¶ 18; Ex. N [ROA 75].) Sanctions were awarded against Plaintiff and to BMW NA’s counsel in the amount of \$3,560. The Court also imposed sanctions on Quill in the amount of \$300 to pay to the Clerk of the Court. The sanctions to Defendant’s counsel and to the Court have been paid. It appears that Plaintiff’s deposition has still not been taken. The vehicle inspection has not taken place and cannot take place – the vehicle was totaled sometime around the time the Court issued its discovery orders. The Court intends to impose at least monetary sanctions against Plaintiffs and/or their counsel. Counsel should be prepared to address the appropriate amount of monetary sanctions and the appropriate type of additional sanctions.
110	National Funding, Inc. vs. Integrated Holdings, Inc., 2025-01529466	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION – GRANTED Plaintiff National Funding, Inc., moves for summary judgment or, in the alternative, summary adjudication against Defendant Lee Kareem (Kareem or Guarantor), as to the second cause of action for breach of guaranty, the only cause of action against this defendant. No opposition has been filed. Plaintiff filed the instant Complaint against Defendants Integrated Holdings, Inc. dba D&N Gage and Kareem. Default has been entered against co-defendant, Integrated Holdings, Inc. dba D&N Gage. (ROA 17.)